Republic of the Philippines
Province of Agusan del Sur
**MUNICIPALITY OF SAN FRANCISCO**
**OOO**
**22nd SANGGUNIANG BAYAN**

**JOINT COMMITTEE REPORT NO. 07-2026**

**SUBMITTED BY : THE JOINT COMMITTEE ON RULES (LEAD COMMITTEE) AND COMMITTEE ON ECOLOGY NATURAL RESOURCES AND ENVIRONMENTAL PROTECTION**

**SUBJECT : ORDINANCE NO. 42 SERIES OF 2026 OF BARANGAY 5-AN ORDINANCE MANDATING AND IMPLEMENTING "TAPAT KO LINIS KO" TO ALL RESIDENT, OWNERS, AND OPERATORS OF INSTITUTIONS AND ESTABLISHMENTS TO MAINTAIN CLEAN LINES AND ORDERLINESS IN FRONT AND SURROUNDING THEIR PREMISES AND PROVIDING PENALTIES FOR VIOLATIONS THEREOF-TN-620-26**

**DATE : OCTOBER 21, 2026**

**TO THE HONORABLE PRESIDING OFFICER:**

After the Joint Committee Hearing conducted last October 19, 2026, the Joint Committee to which the said matter was referred to would like to report its findings and recommendations, to wit;

**FINDINGS:**

After reviewing the ordinance entitled "AN ORDINANCE MANDATING AND IMPLEMENTING "TAPAT KO LINIS KO" TO ALL RESIDENT, OWNERS, AND OPERATORS OF INSTITUTIONS AND ESTABLISHMENTS TO MAINTAIN CLEAN LINES AND ORDERLINESS IN FRONT AND SURROUNDING THEIR PREMISES AND PROVIDING PENALTIES FOR VIOLATIONS THEREOF," the committee finds that the said measure promotes cleanliness, proper waste management, and environmental protection within the barangay.

The committee recommends the following revisions and enhancements to ensure that the ordinance is clear, properly structured, and consistent with Republic Act No. 9003, or Ecological Solid Waste Management Act of 2000, and the applicable Municipal Solid Waste Management Ordinance:

1. Additional Whereas Clauses, include references to Republic Act 9003 and the applicable Municipal Solid Waste Management Ordinance to strengthen the legal basis of the propose measure.
2. Section 1-Title, revise the title to read "Tapat ko Linis Ko Ordinance of Barangay 5."
3. Section 3-Proper Waste Disposal
   3.1 Replace the term "waste matters" with "waste materials"
   3.2 Revise the provisions on proper waste disposal and segregation in accordance with the guidelines and procedures prescribed by the Municipal Environment and Natural Resources Office (MENRO).
   3.3 Incorporate the applicable prohibited acts provided under the municipal solid waste management ordinance.
4. Section 5-Persons Liable, revise and organize the provisions as follows:
   5.1 Residential Houses-the owner, lessee, or administrator of the residential house.
   5.2 Commercial Establishments
      a. Sole Proprietorship-The owner or proprietor.
      b. Corporations and similar entities-the general Manager, president, or most senior officer.
5. Section 6-Penalties, revised penalties as follows:

   * First Offense: Written warning and attendance at an Ecological Solid Waste Management Seminar.

   * Second Offense: a fine of P500.00 and community service.

   * Third and succeeding offenses: a fine of P1000.00 and community service.

The imposition of fines and community service must be consistent with applicable laws and municipal ordinances.

5. Coordinate with the MENRO and seek technical assistance in refining the ordinance, particularly its provisions on waste segregation, proper disposal, prohibited acts and penalties.

**RECOMMENDATIONS:**

1. In view of the forgoing findings, the Committee recommends that Ordinance No.42, series of 2026 of Barangay 5, be returned to the Sangguniang Barangay for enhancement and compliance with the committee's recommendations.
2. Upon submission of the corrected copies incorporating the recommended revisions, the ordinance shall be reviewed to determine whether the committee's recommendations have been properly incorporated. Only after compliance with the recommendations and confirmation of the ordinance's conformity with applicable laws and regulations shall appropriate resolution declaring the ordinance valid and operative be considered for passage.
3. Let copy of this Committee report be furnished to the Punong Barangay of Barangay 5 and other concerned parties for their information, guidance and appropriate action.

**RESPECTFULLY SUBMITTED BY:**

**THE JOINT COMMITTEE ON RULES (LEAD COMMITTEE) AND COMMITTEE ON ECOLOGY, NATURAL REOURCES AND ENVIRONMENTAL PROTECTION**

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